MELANIA MIDZI
and
JOHN MIDZI
versus
MASTER OF THE HIGH COURT OF ZIMBABWE N.O
and
OLIVER MASOMERA N.O
and
MARY MUPINDU
and
GRACE NYANIKE
and
PARADZAI NORCISSIUS MIDZI
and
ESTATE LOVE SYLVESTER MIDZI

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE, 29 September 2025 & 3 February 2026

Opposed

B Mudhau & T Shadreck, for the Applicants
B Mauva, for the 2nd and 6th Respondent
3rd, 4th and 5th respondents in person
No appearance for 1st respondent

MAXWELL J: Applicants approached the court seeking the following order:

> "1. The decision of the first respondent of issuing second respondent with consents to sale a certain piece of land situate in the District of Umtali called stand 791A Umtali measuring 3345 square meters also known as stand number 1 Aerondrome Road Mutare and a bottle store 18109 Nyanzira Business Centre, Sabi Buhera belonging to the Estate Late Sylvester Mungwari Midzi and Estate Late Mary Grace Midzi respectively be and is hereby set aside.
>
> 2. There shall be no order as to costs if this application is not opposed. In the event that it is opposed, the respondent that opposes the application be and is hereby ordered to pay costs of suit."

The first applicant deposed to the Founding Affidavit. She stated that the first respondent acted unlawfully, unreasonably and in an unfair manner in granting the consent to sale. The

second applicant, third up to sixth respondents are siblings. Their mother passed on and her estate was registered under DRMT 53/12. Their father passed on on 8 July 2011. His estate was registered under DRMRE 467/23. Second respondent was appointed the executor of both estates. In May 2024 second respondent convened a meeting regarding the winding up of the two estates and sharing of the property therein. Third, fourth and fifth respondents signed affidavits signifying their consents to have the house and store sold so that they receive money in exchanging for their shares. Both applicants did not consent to the sale of the house and the store. First applicant proposed that she could buy out her siblings' shares in the house and in the store. She wrote a letter to that effect to the first and second respondents. There was no response until after a follow up. She was advised through a letter dated 19 June 2024 that the first respondent had authorised the sale of the house. She also got to know that the sale of the store had also been authorised. Applicants are aggrieved by the decision to issue the consent to sale and therefore filed this application.

The first respondent submitted a report in this matter. He stated that he complied with the requirements of s 120 of the Administration of Estates Act [*Chapter 6.01*]. Further that their decision was predicated upon the submissions of the applicants and third to fifth respondents. Second respondent deposed to an opposing affidavit on his behalf as well as on behalf of the sixth respondent. He raised a points *in limine* that the Founding and Supporting Affidavits are defective as they have computer generated dates proving that the persons who signed and the commissioner did not put a date on the application. He also pointed out that the applicants erroneously cited sixth respondent instead of citing him in his official capacity.

On the merits he stated that the application ought to have been filed in Mutare as all the parties are in Mutare. He supported the decision to issue consent to sale and indicated that it was conceived out of a due process where a meeting with all the beneficiaries was held. He expressed surprise at the applicants' objection to the issuing of the consent to sale and indicated that applicants had expressed interest in buying out other beneficiaries which process would require consent to sale. He pointed out that applicants had alleged that they are prepared to meet the estate liabilities and buy out the other siblings' shares but did not demonstrate their capacity to do so.

Third respondent also deposed to an opposing affidavit. She indicated *in limine* that applicants had approached the court relying on a wrong law, they should have approached the court in terms of s 27 of the High Court Act [*Chapter 7.06*] and not s 4 of the Administrative Justice Act [*Chapter 10.28*]. she also objected to the applicants' affidavits on the basis that they had computer generated dates. On the merits she pointed out that the applicants had been benefitting from the assets of the estate to the exclusion of the third, fourth and fifth respondents. She confirmed third, fourth and fifth respondents' consent to having the house and store sold so that they get their shares from the proceeds of the sale. She indicated that applicants had expressed no capacity to buy out the other beneficiaries and suggested that second respondent should get a highest bidder from the market. In her view applicants' remedy lies in having the properties evaluated, calculation of what is due and owing to third, fourth and fifth respondents and then buying them out. Fourth and fifth respondents deposed to affidavits associating themselves with submissions by the third respondent.

In answer, first applicant indicated that she had requested for a valuation of the properties which had not been done. She disputed that due process had been followed. She disputed that the founding and supporting affidavits were defective. She attached on affidavit by the Commissioner of Oaths who commissioned the affidavits.

At the hearing of the matter the respondents persisted with the points raised *in limine*. I dismissed the objection to the Founding Affidavits. When we are moving towards a paperless system, it is retrogressive to object to a computer generated date. It would have been a different issue if there was no date indicated. The Founding Affidavit is concluded.

> "THUS, DONE AND SWORN TO AT MUTARE THIS 3RD DAY OF JULY 2024
> SIGNED MELANIA MIDZI MIDZI
> BEFORE ME COMMISSIONER OF OATHS."

The literal interpretation is that Melania Midzi swore and signed before the Commission of Oaths on the 3rd of July 2024. If respondents are of the view that the facts so stated are not correct, they had the onus of showing the incorrectness. The statement does not cause any ambiguity.

The second preliminary point was that applicants ought to have sought review of the Master's decision. The Supreme Court decision in *Telecontract (Pvt) Ltd* v *Potraz & Others* SC

71/17 disposes of this point. The Supreme Court indicated that a litigant challenging the decision of an administrative authority may do so through an application not necessarily for review. The Master was exercising an administrative function and therefore applicant properly sought redress under the Administrative Justice Act [*Chapter 10.28*].

The question is whether first respondent acted unlawfully, unreasonably and in an unfair manner in granting the impugned authority to sale the two properties belonging to the deceased estates.

1. WHETHER THE DECISION WAS UNLAWFUL UNREASONABLE AND UNFAIR

Applicants argue that the procedure set out in terms of s 120 of the Administration of Estates Act [*Chapter 6.01*] was not complied with when the consent to sell the property was issued by the first respondent. They argue that the Master did not conduct a due inquiry before issuing the consent to sale the properties in issue. First respondent submitted that the law was complied with and an inquiry was done before the consent to sale was issued. He stated that physical meetings with beneficiaries were held, the first being on 4th May 2023. The beneficiaries were requested to lodge their opinions on the request to sale the property. Third to fifth respondents lodged their requests to have the property sold on 1 June 2023. Applicants did not file their opinions. Other meetings were subsequently held.

First respondent submitted that both estates, that is estate late Sylvester Mungwari Midzi DRMRE 467/23 and estate late Mary Grace Midzi DRMT 53/12, are illiquid and have unpaid liabilities. The beneficiaries made no contributions towards statutory obligations.

Sections 120 of the Administration of Estates Act [*Chapter 6.01*] provides as follows:

> "120. Sale of Property otherwise than by auction.
> If, after due inquiry, the Master is of opinion that it would be to the advantage of persons interested in the estate to sell any property belonging to such estate otherwise than by public auction he may, if the will of the deceased contains no provisions to the contrary, grant the necessary authority to the executors to act."

In the case of *Master of the High Court N.O and Ors* v *Takaendesa and Others* SC 101/22 it was stated that in order to comply with s 120 of the Administration of Estates Act [*Chapter 6.01*], the Master of the High Court must comply with the requirements of the Administrative Justice Act [*Chapter 10.28*]. Section 3 of the Administrative Justice Act [*Chapter 10.28*] provides;

"3. Duty of Administrative Authority

1. An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall-
   (a) Act lawfully, reasonably and in a fair manner, and
   (b) Act within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to take the action by the person concerned; and
   (c) Where it has taken the action, supply written reasons therefore within the relevant period specified by law or, if there is no such specified period after being requested to supply reasons by the person concerned.
2. In order for an administrative action to be taken in a fair manner as required by para (a) of subsection (1), an administrative authority shall give a person referred to in subsection (1)…
   (a) adequate notice of the nature and purpose of the proposed action; and
   (b) a reasonable opportunity to make adequate representations and
   (c) adequate notice of any right of review or appeal where applicable."

The Master is also required to consider the requirements established by case law. In *Madzingaidze N.O* v *Katanga Service Station* HH 256/13 CHITAKUNYE J (as he then was) stated that when presented with a request by an executor to sell estate property by private treaty, the Master has to formulate his own opinion after due inquiry and the opinion has to be in furtherance of the advantage of the persons interested in the estate, that is, the beneficiaries. The honourable Judge pointed out that.

> "The section does not *per se* require that all the interested parties must agree…
> A due inquiry may be described as a fitting or appropriate investigation or research on the subject matter before arriving at a decision. This necessarily involves a consideration of submissions made by all interested parties, including the beneficiaries, and an assessment of what would be appropriate given the circumstances of the matter. The Master will want to know the reason why the property has to be sold and how the sale will be advantageous to the beneficiaries."

Applicants did not dispute their participation in meetings before the first and second respondents. In my view, what they are objecting to is the issuance of the consent to sale despite their opposition to the sale of the estate properties. They did not tender the amounts required to meet estate liabilities.

The report by the Master was filed on 17 July 2024. There are allegations that applicants misrepresented facts. There are submissions on the lawfulness, reasonableness and fairness of the process followed by first respondent. Applicants did not respond to the allegations and submissions by the first respondent. They found it sufficient to file answering affidavits to the opposition by the second to the sixth respondents. The averments and allegations by the first

respondent stand unchallenged. It is trite that what is not challenged is taken as admitted. See *Fawcett Operations P/L* v *Director Customs and Excise and Others* 1993(2) ZLR 12. In the absence of a rebuttal of submissions by the first respondent, applicants failed to discharge the onus on them to prove that first respondent's actions were unlawful, unreasonable and unfair.

In any event, in answer to the Opposition by the second (which is erroneously indicated as first) and the sixth respondents, first applicant referred to a letter dated 22 May 2024 in which she expressed an intention to buy out her siblings. Such buy out would not be possible without the consent of the first respondent. Buy out occurs where there is a sale. First respondent stated in his report that when the beneficiaries were invited to file their opinion after a meeting was held on 4 May 2023, they did not do so. A person who was given an opportunity to be heard cannot complain of a deprivation of the right to be heard if he ignores the opportunity afforded to him.

Applicants have not made a case for the setting aside of the first respondent's decision to issue second respondent with consents to sale property in DRMRE 467/23 and DRMT 53/12. Their application fails.

I make the following order.

The application be and is hereby dismissed with costs.

MAXWELL J:…….

Zuze Law Chambers, second and sixth respondents' legal practitioners